

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

SUMMONS

-----X
JEREMY GERMAIN,
Plaintiff,

Plaintiff designates
Kings County as the
place of trial.

-against-

THE CITY OF NEW YORK, P.O. TANYA O.
BARRY, 67 PCT, TAX ID 926642, NEW YORK
CITY DEPARTMENT OF EDUCATION, BOARD OF
EDUCATION OF THE CITY OF NEW YORK,
MICHAEL BOUCICAUT,
Defendants.

The basis of venue is:
County of Occurrence
CPLR 504(3)

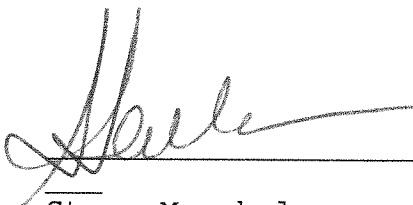
Plaintiff resides at
472 East 48th Street
Brooklyn, NY 11203

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Index No:

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Mineola, New York
May 1, 2014



Steve Marchelos
MARCHELOS LAW P.C.
Attorneys for Plaintiff(s)
GERMAIN
87 Mineola Boulevard
Mineola, New York 11501
(516) 248-0202

TO: CITY OF NEW YORK, 100 Church Street New York, NY 10007

POLICE OFFICER TANYA O. BARRY, c/o 67th Police
Precinct, 2820 Snyder Avenue, Brooklyn, NY 11226

NEW YORK CITY DEPARTMENT OF EDUCATION, 100 Church
Street New York, NY 10007

BOARD OF EDUCATION OF THE CITY OF NEW YORK, 100 Church
Street, New York, NY 10007

MICHAEL BOUCICAUT, c/o Arts & Media Preparatory
Academy, 905 Winthrop Street, Brooklyn, NY 11203

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X

JEREMY GERMAIN,
Plaintiff,

-against-

VERIFIED
COMPLAINT

THE CITY OF NEW YORK, P.O. TANYA O. BARRY,
67 PCT, TAX ID 926642, NEW YORK CITY
DEPARTMENT OF EDUCATION, BOARD OF EDUCATION
OF THE CITY OF NEW YORK, MICHAEL BOUCICAUT,
Defendants.

Index No:

-----X

JEREMY GERMAIN, by his attorneys, MARCHELOS LAW P.C.,
alleges the following, upon information and belief, as his
Complaint:

NATURE OF THE ACTION

1. This civil rights action arises from the defendant
Police Officer's unlawful and improper arrest and imprisonment of
plaintiff, on January 31, 2013 through February 1, 2013 and the
subsequent prosecution of plaintiff by this officer and
defendant, THE CITY OF NEW YORK, which ended in dismissal of some
charges on or about February 27, 2013, while others remain
pending;

2. This civil rights action also arises from the actions
of defendant, MICHAEL BOUCICAUT, a Dean employed by the
defendants, NEW YORK CITY DEPARTMENT OF EDUCATION and/or BOARD OF
EDUCATION OF THE CITY OF NEW YORK, in with holding evidence that
clearly exculpated plaintiff from any of the crimes charged;

3. Plaintiff seeks declaratory relief pursuant to 28

U.S.C. § 2201 and CPLR 3001, compensatory and punitive damages for violation of plaintiff's civil rights protected under the Fourth, Fifth and Fourteenth Amendments of the United States Constitution and Article 1 of the New York State Constitution, which are actionable pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1986 along with an award of costs, disbursements and attorneys fees under 42 U.S.C. §1988;

4. Plaintiff also seeks compensatory and punitive damages under the New York State Constitution and common law tort claims against all the defendants named herein;

VENUE

5. That Venue for this action is placed in the County of Kings because that is the county of occurrence of the acts alleged herein pursuant to CPLR 504(3)

NOTICE OF CLAIM

6. That on April 30, 2013, plaintiff caused a Notice of Claim to be served upon defendants, THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION and the BOARD OF EDUCATION OF THE CITY OF NEW YORK;

7. The Notices of Claim were both delivered to the person designated by law as a person to whom such claims may be presented and served;

8. The Notices of Claim were in writing, sworn to by or on behalf of the plaintiff and contained the name and post office

address of the plaintiff and plaintiff's attorney, the nature of the claim, the time when the place where and the manner by which the claim arose, and the damage and injuries claimed to have been sustained;

9. That on or about August 9, 2013 through the present day, defendants, CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION and BOARD OF EDUCATION OF THE CITY OF NEW YORK, failed to arrange for a 50-h hearing of the plaintiff after an adjournment was requested, and more than 90 days elapsed since plaintiffs' request for an adjournment and, as such, the hearing pursuant to General Municipal Law 50-h has been waived;

10. That none of the defendants ever requested a physical exam;

11. That each of the defendants have failed and/or refused to pay and/or adjust the claim within the statutory period of time;

12. This action has been started within one year and ninety days after the happening of the event upon which the claim is based;

PARTIES

13. Plaintiff, JEREMY GERMAIN, was and continues to be a resident of the State of New York, County of Kings;

14. Defendant, the CITY OF NEW YORK is a municipal corporation duly authorized and existing under and by virtue of

the laws of the State of New York;

15. Defendant, the CITY OF NEW YORK, has established and maintains a police department which is an agency of the defendant, CITY OF NEW YORK;

16. At all times relevant, defendants the CITY OF NEW YORK employed the individual defendant, P.O. TANYA O. BARRY, Tax ID No. 926642 of the 67th Precinct (hereinafter " P.O. BARRY");

17. At all times relevant, defendant, P.O. BARRY, was a duly appointed and acting police officer of the CITY OF NEW YORK;

18. At all times relevant, P.O. BARRY was acting under the color of State Law;

19. At all times relevant, P.O. BARRY, was acting both in her individual and official capacity as an employee of defendant, THE CITY OF NEW YORK;

20. Notwithstanding the unconstitutional and unlawful conduct, the actions of the individual defendant were taken in the course of her duties and were incidental to her otherwise lawful functions as an agent, servant and employee of THE CITY OF NEW YORK;

21. Defendant, the NEW YORK CITY DEPARTMENT OF EDUCATION is a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York;

22. Defendant, the NEW YORK CITY DEPARTMENT OF EDUCATION is an agency of the defendant, CITY OF NEW YORK;

23. Defendant, the BOARD OF EDUCATION OF THE CITY OF NEW YORK is a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York;

24. Defendant, the BOARD OF EDUCATION OF THE CITY OF NEW YORK, is an agency of the defendant, CITY OF NEW YORK;

25. At all times relevant, Defendant, MICHAEL BOUCICAUT, was a resident of the State of New York;

26. At all times relevant, Defendant, MICHAEL BOUCICAUT, was an employee of the CITY OF NEW YORK;

27. At all times relevant, Defendant, MICHAEL BOUCICAUT was an employee of the NEW YORK CITY DEPARTMENT OF EDUCATION;

28. At all times relevant, Defendant, MICHAEL BOUCICAUT was an employee of the BOARD OF EDUCATION OF THE CITY OF NEW YORK;

29. At all times relevant, Defendant, MICHAEL BOUCICAUT, maintained a principle place of business at 905 Winthrop Street, Brooklyn, New York;

30. At all times relevant, defendant, MICHAEL BOUCICAUT, was employed as a dean of the Arts & Media Preparatory Academy;

31. At all times relevant, MICHAEL BOUCICAUT was acting under the color of State Law;

32. At all times relevant, MICHAEL BOUCICAUT, was acting both in his individual and official capacity as an employee of defendant, THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF

EDUCATION and/or BOARD OF EDUCATION OF THE CITY OF NEW YORK;

20. Notwithstanding the unconstitutional and unlawful conduct, the actions of the individual defendant were taken in the course of his duties and were incidental to his otherwise lawful functions as an agent, servant and employee of THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION and/or BOARD OF EDUCATION OF THE CITY OF NEW YORK;

FACTS UNDERLYING PLAINTIFF'S CLAIMS FOR RELIEF

33. That on or about January 31, 2013 at approximately 1:40 p.m. of that day, plaintiff, JEREMY GERMAIN, was falsely and unlawfully arrested by defendant, CITY OF NEW YORK, by its agents, servants and/or employees, including but not limited to P.O. Barry while attending the Arts & Media Preparatory Academy at 905 Winthrop Street, Brooklyn, New York;

34. That plaintiff was arrested purportedly on the complaint of an individual named Isaiah Jordan who claimed that plaintiff, along with another student, Michael Franceschi, robbed and assaulted him on December 5, 2012 and January 29, 2013, respectively;

35. That this arrest was made on school premises and in the presence of various school officials including defendant MICHAEL BOUCICAUT;

36. That the arrest of plaintiff was made despite the fact that school classroom attendance records revealed that

plaintiff was actually in a classroom at the time of the December 5, 2012 incident;

37. That the arrest of plaintiff was made despite the fact that on the date and time of the purported assault, January 29, 2013, plaintiff was at his home;

38. That the arrest of plaintiff was made despite the fact that Franceschi admitted that plaintiff was not involved in the incidents of December 5, 2013 and January 29, 2013;

39. That the arrest of plaintiff was made despite the fact that Principal of the school concluded that plaintiff was not involved in the alleged incidents based upon his investigation;

40. That the arrest of plaintiff was made despite the fact that the initial written statement by Isaiah Jordan to school officials, including defendant, BOUCICAUT, named only Franceschi as an assailant for the January 29, 2013 incident. This written statement did not reveal the identities of any other person involved, despite the fact that Isaiah Jordan previously knew plaintiff from when they attended school together;

41. That this clear exculpatory information was known to P.O. Barry at the time of the arrest;

42. That this clear exculpatory information was available to P.O. Barry at the time of the arrest;

43. That this clear exculpatory information was known to

BOUCICAUT at the time of the arrest;

44. That this clear exculpatory information was available to BOUCICAUT at the time of the arrest;

45. That this clear exculpatory information was either concealed or purposefully ignored by P.O. Barry as well as defendant BOUCICAUT at the time of plaintiff's arrest and during the prosecution;

46. That notwithstanding this clear exculpatory information that existed at the school at the time of the arrest, plaintiff was charged with robbery, assault, attempted assault, menacing and harassment of Isaiah Jordan;

47. That with respect to the charges from the January 29, 2013 incident, the criminal court complaint charged plaintiff with the following conduct: *"...defendant Germain[e] did grab informant by the jacket and did punch informant in the face while defendant Franceschi [sic] was standing guard right behind informant preventing informant from running away or defending himself";*

48. That defendant, P.O. Barry, as the arresting officer, swore under penalty of perjury that the facts contained in the criminal court complaint were truthful;

49. That P.O. Barry swore that the basis for these facts asserted in the sworn criminal court complaint came from Isaiah Jordan;

50. That Isaiah Jordan never stated the plaintiff punched him in the face, but in fact reported to school officials on or before the date of the arrest that only Michael Franceschi punched him in the face;

51. That Isaiah Jordan initially reported to school officials, on or before the date of the arrest, that he was unaware of the identity of any other individual involved in the January 29, 2013 incident;

52. That on or about February 11, 2013, Isaiah Jordan testified at a school hearing that it was Michael Franceschi that punched him in the face during the January 29, 2013 incident;

53. That on or about February 11, 2013, Isaiah Jordan testified at that same school hearing that he could not identify anybody else who was involved in the incident on January 29, 2013;

54. That defendant, BOUCICAUT, participated in the hearing on February 11, 2013 on behalf of defendant, CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION and/or THE BOARD OF EDUCATION OF THE CITY OF NEW YORK;

55. That P.O. Barry ignored these exculpatory facts and swore out the criminal court complaint with the false statements anyway;

56. That on or about February 27, 2013, the criminal charges against plaintiff were presented before a grand jury in

Kings County;

57. That on or about February 27, 2013, a Kings County Grand Jury refused to indict plaintiff on charges that he committed any crime on January 29, 2013 against Isaiah Jordan;

58. That on or about February 27, 2013, a Kings County Grand Jury did indict plaintiff on charges that he stole a quantity of property from Isaiah Jordan on December 5, 2013;

59. That the indictment for this incident was obtained through fraud and a purposeful withholding of evidence that completely exculpated the plaintiff, to wit: classroom attendance records proving that plaintiff was in class at the time that the alleged incident of December 5, 2013 occurred;

60. That plaintiff had not committed any crimes against Isaiah Jordan;

61. That defendants, NEW YORK CITY DEPARTMENT OF EDUCATION and/or BOARD OF EDUCATION OF THE CITY OF NEW YORK, by its agents, servants and/or employees, including, MICHAEL BOUCICAUT, instigated and directed the arrest and prosecution of plaintiff by purposefully withholding this exculpatory evidence;

62. That defendants, NEW YORK CITY DEPARTMENT OF EDUCATION and/or BOARD OF EDUCATION OF THE CITY OF NEW YORK, by its agents, servants and/or employees, including, MICHAEL BOUCICAUT, instigated and directed the arrest and prosecution of plaintiff without any reasonable cause to believe that plaintiff

committed any crime;

63. That the arrest and prosecution was initiated and continued without probable cause to believe any crime had been committed by the plaintiff;

64. That plaintiff has been forced, and continues to defend himself against criminal charges that are false and were known to be false by the defendants;

65. That the arrest, incarceration and prosecution of plaintiff was, and continues to be, unjustified and excessive by the defendants as plaintiff did not commit any act which would provoke such a response from the defendants;

66. That plaintiff was confined to the custody of legal authorities under the control of defendant, THE CITY OF NEW YORK including the 67th Precinct, located at 2820 Snyder Avenue, Brooklyn, New York, and Kings County Central Booking for a period of 31 hours;

67. That plaintiff had knowledge of this confinement;

68. That plaintiff did not consent to the confinement;

69. That plaintiff was prevented from leaving the confinement;

70. That during this confinement, plaintiff was fingerprinted and photographed by, and at the direction of, the defendants;

71. That on or about February 1, 2013 at approximately

8:00 p.m., plaintiff was arraigned and released on his own recognizance;

72. That Plaintiff sustained great fear, emotional harm, disgrace, embarrassment and loss of self esteem as a result of the aforesaid arrest and imprisonment perpetrated upon him by defendants as a result of the afore-referenced events including anxiety and stress;

73. That plaintiff continues to sustain great fear, emotional harm, anxiety and loss of self esteem as a result of the continued prosecution of crimes he did not commit;

74. Plaintiff suffered from a loss of liberty and deprivation of civil rights protected by the United States and New York State Constitution as a result of the afore-referenced events;

**FIRST CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFF'S SUBSTANTIVE AND PROCEDURAL DUE
PROCESS RIGHTS UNDER THE FOURTH, FIFTH AND
FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION PREDICATED UPON FALSE ARREST AND
IMPRISONMENT**

75. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

76. As a result of the aforescribed actions, including the arrest and imprisonment of plaintiff without probable cause, and the purposeful withholding of certain exculpatory evidence, the defendants, P.O. BARRY and MICHAEL BOUCICAUT, deprived

plaintiff of the rights, privileges and immunities secured by the Constitution and laws of the United States and the Fourteenth Amendment;

77. As a result of the aforescribed actions, these defendants deprived plaintiff of the right to be free from unreasonable search and seizures secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments;

78. As a result of the aforescribed actions, these defendants deprived plaintiff of his right to liberty without due process of law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments;

79. The aforescribed conduct by these defendants was motivated and instigated by other than lawful reasons and without probable cause;

80. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985 and 1986;

81. The aforescribed acts of these defendants were intentional, willful, malicious and performed with a reckless disregard for and deliberate indifference to plaintiff's rights;

82. As a result of the foregoing, plaintiff has suffered damages;

SECOND CAUSE OF ACTION FOR VIOLATION OF
PLAINTIFFS' SUBSTANTIVE AND DUE PROCESS
RIGHTS TO BE FREE FROM UNREASONABLE SEARCHES
AND SEIZURES, AS PROTECTED BY ARTICLE 1 OF
THE NEW YORK STATE CONSTITUTION PREDICATED
UPON THE ARREST AND IMPRISONMENT OF PLAINTIFF
WITHOUT PROBABLE CAUSE

83. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

84. As a result of the aforescribed actions, including the arrest and imprisonment of plaintiff without probable cause, and the purposeful withholding of certain exculpatory evidence, the defendants, P.O. Barry and MICHAEL BOUCICAUT, individually deprived plaintiff of the rights, privileges and immunities secured by Article I, Sections 1, 5, 8, 11 and 12 the New York State Constitution;

85. As a result of the aforescribed actions, these defendants individually deprived plaintiff of the substantive and due process right to be free from unreasonable search and seizures secured by Article I, Sections 1, 5, 8, 11 and 12 of the New York State Constitution;

86. As a result of the aforescribed actions, these defendants individually deprived plaintiff of his right to liberty without due process of law secured by Article I Sections 1, 8, 11 and 12 of the New York State Constitution;

87. The aforescribed conduct by these defendants was

motivated and instigated by other than lawful reasons and without probable cause;

88. The aforescribed acts of these individual defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights;

89. As a result of the foregoing, plaintiffs have suffered damages;

**THIRD CAUSE OF ACTION FOR FALSE ARREST AND
IMPRISONMENT**

90. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

91. As a result of the foregoing, plaintiff was without just cause or provocation, maliciously, recklessly, and/or intentionally arrested and imprisoned without probable cause resulting in an unlawful confinement, deprivation of liberty and other serious injury and harm to plaintiff;

92. That at the time and place aforesaid, the defendants, individually and/or vicariously by and through their agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, and/or intentionally caused plaintiff to be arrested and imprisoned without probable cause resulting in an unlawful confinement, deprivation of liberty and other serious injury to plaintiffs;

93. That the occurrence and damages sustained by plaintiff was caused solely by the malicious, reckless, and/or intentional conduct of the defendants, individually and/or vicariously by and through their agents, servants and/or employees, without any provocation on the part of the plaintiff contributing thereto;

94. As a result of the foregoing, plaintiff has suffered damages;

**FOURTH CAUSE OF ACTION FOR NEGLIGENT AND
INTENTIONAL INFLICTION OF EMOTIONAL HARM**

95. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

96. As result of the foregoing, defendants, individually and or vicariously, by and through their agents, servants and/or employees, intentionally, wantonly, recklessly, carelessly and/or negligently engaged in extreme and outrageous conduct measured by the reasonable bounds of decency tolerated by decent society thereby inflicting mental and emotional distress upon plaintiffs;

97. As a result of the foregoing, plaintiffs have suffered damages;

**FIFTH CAUSE OF ACTION FOR NEGLIGENT TRAINING,
SUPERVISION AND RETENTION**

98. Plaintiff repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the

same force and effect as if set forth more fully herein;

99. That at all times hereinafter mentioned, the defendants, THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION and BOARD OF EDUCATION OF THE CITY OF NEW YORK, by its agents, servants and/or employees carelessly, negligently, and recklessly hired applicants for the position of Police Officer and/or Dean of schools;

100. That at all times hereinafter mentioned, the defendants, THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION and BOARD OF EDUCATION OF THE CITY OF NEW YORK, by its agents, servants and/or employees carelessly, negligently, and recklessly trained applicants for the position of police officer and/or Dean of Schools;

101. That at all times hereinafter mentioned, the defendants, THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION and BOARD OF EDUCATION OF THE CITY OF NEW YORK, by its agents, servants and/or employees carelessly, negligently and recklessly supervised, controlled, managed, maintained and inspected the activities of its police officers and school Dean;

102. That at all times hereinafter mentioned, the defendants, THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION and BOARD OF EDUCATION OF THE CITY OF NEW YORK, by its agents, servants and/or employees caused, permitted and allowed its police officers and its Dean of Schools to act in an illegal,

unprofessional, negligent and/or deliberate manner in carrying out their official duties and/or responsibilities;

103. That at all times hereinafter mentioned, the defendants, THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION and BOARD OF EDUCATION OF THE CITY OF NEW YORK, by its agents, servants and/or employees carelessly, negligently and recklessly retained in its employ, police officers and school Deans clearly unfit for the position who acted in an illegal, unprofessional, negligent and/or deliberate manner in carrying out their official duties and/or responsibilities prior to the date of the incident complained of herein;

104. That at the time and place aforesaid, the defendants THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF EDUCATION and BOARD OF EDUCATION OF THE CITY OF NEW YORK, by its agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, and/or intentionally falsely arrested, imprisoned plaintiff and purposefully withheld exculpatory evidence causing serious personal harm and damages to plaintiff with knowledge that plaintiff had not committed any crime and without any evidence to believe that he had committed a crime;

105. That the occurrence and damages sustained by plaintiff, was caused solely by, and as a result of the malicious, reckless, negligent, and/or intentional conduct of the defendants, THE CITY OF NEW YORK, NEW YORK CITY DEPARTMENT OF

EDUCATION and BOARD OF EDUCATION OF THE CITY OF NEW YORK, their agents, servants and/or employees as set forth above, without any provocation on the part of the plaintiff contributing thereto, specifically, the negligent and reckless manner in which said defendants hired, trained, supervised, controlled, managed, maintained, inspected and retained their police officers and school Deans;

106. As a result of the foregoing, plaintiff has suffered damages;

SIXTH CAUSE OF ACTION FOR PUNITIVE DAMAGES

107. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein;

108. That the aforesaid occurrence and resulting injuries to plaintiff was due to the willful, wanton, reckless and/or malicious conduct of the individual defendants including, P.O. Barry and MICHAEL BOUCICAUT;

109. That the aforesaid occurrence and resulting damages to plaintiff was due to the conduct of these defendants which reflected an utter indifference to the rights, safety and well being of others and specifically the rights, safety and well being of plaintiff;

110. That the conduct of these defendants exhibited a reckless disregard for human life and the rights, safety and well

being of others and more particularly, for the life, rights, safety and well being of plaintiff;

111. As a result of the foregoing, plaintiff has suffered damages;

112. As a result of the foregoing, defendants, including defendants, P.O. Barry and MICHAEL BOUCICAUT, should be made to pay punitive damages to punish them for their wanton, reckless and malicious acts and thereby discourage these defendants and others from acting in a similar way in the future;

REQUEST FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that judgment be entered as follows:

(A) Declaratory relief as follows:

1. As to the first cause of action, a declaration that plaintiff's substantive and procedural due process rights under the Fourth Fifth and Fourteenth Amendment of the United States Constitution was violated, predicated upon the unlawful arrest and imprisonment of plaintiff;

2. As to the second cause of action, a declaration that plaintiff's substantive and procedural due process rights to be free from unreasonable searches and seizures, as protected by Article 1 of the New York State Constitution was violated, predicated upon the false arrest and imprisonment of plaintiff;

(B) As to the first through fifth causes of action, compensatory damages in an amount that exceeds the jurisdictional limits of all lower Courts that would otherwise have jurisdiction;

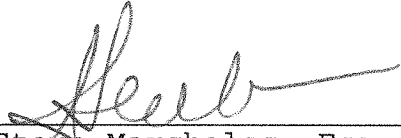
(C) As to the first through sixth causes of action, punitive damages in an amount that exceeds the jurisdictional limits of all lower Courts that would otherwise have jurisdiction, by reason of the wanton, willful and malicious character of the conduct complained of herein;

(D) As to the first through sixth causes of action, an award to plaintiff of the costs and disbursements herein;

(E) As to the first through second causes of action, an award of attorney's fees as provided under 42 U.S.C. §1988 as well as the New York State Constitution; and

(F) Such other and further relief as this Court may deem just, proper and equitable

Dated: May 1, 2014
Mineola, New York



Steve Marchelos, Esq.
MARCHELOS LAW P.C.
Attorneys for Plaintiff
GERMAIN
87 Mineola Boulevard
Mineola, New York 11501
(516) 248-0202

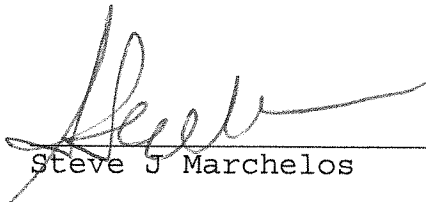
ATTORNEY VERIFICATION

Steve J Marchelos, an attorney duly admitted to practice law in the Courts of the State of New York affirms the following to be true under the penalties of perjury pursuant to CPLR 2106.

That affirmant is the attorney for the plaintiff in the action within; that affirmant has read the foregoing **COMPLAINT** and knows the contents thereof; that the contents are true to affirmant's own knowledge except as to the matters therein stated to be alleged upon information and belief, and as to those matters affirmant believes them to be true; that the reason this verification is not made by plaintiff and is made by affirmant is that plaintiff is not presently in the county where the attorneys for the plaintiff have their office.

Affirmant further says that the source of deponent's information and the grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are from conversations with said plaintiff and investigations made by affirmant's office on behalf of said plaintiff.

Dated: Mineola, New York
May 1, 2014



Steve J Marchelos

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

JEREMY GERMAIN,
Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. TANYA O. BARRY, 67 PCT, TAX ID 926642,
NEW YORK CITY DEPARTMENT OF EDUCATION, BOARD OF EDUCATION OF THE
CITY OF NEW YORK, MICHAEL BOUCICAUT,
Defendants.

SUMMONS AND VERIFIED COMPLAINT

MARCHELOS LAW P.C.
ATTORNEYS FOR PLAINTIFF(S)
87 MINEOLA BLVD.
MINEOLA, NEW YORK 11501
(516) 248-0202

To:
Attorney(s) for Defendants

To:
Attorney(s) for Defendants

To:
Attorney(s) for Defendants

To:
Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated:

.....
Attorney(s) for

Attorney Certification Pursuant to 22 NYCRR Section 130-1.1.A

The undersigned, an attorney duly admitted to practice law in the Courts of the State of New York, respectfully affirms the truth of the following statement under the penalty of perjury pursuant to CPLR §2106

The undersigned attorney hereby certifies that to the best of his/her knowledge, information and belief, formed after an inquiry reasonable under the circumstances, the presentation of the paper(s) or the contents herein are not frivolous as defined in Subsection C of Section 130-1.1.

Dated: 5/1, 2014


Steve Marchelos